



THE UNIVERSITY OF CHICAGO

THE LAW SCHOOL

Abrams Environmental
Law Clinic

September 4, 2026

Via E-Filing

Ms. Lisa Felice
Executive Secretary
Michigan Public Service Commission
7109 West Saginaw Highway
Lansing, MI 48917

RE: MPSC Case No. U-22070

Dear Ms. Felice:

The following is attached for paperless electronic filing:

**Proof of Service for Urban Core Collective's Fifth Discovery Request to Consumers
Energy Company.**

Please do not hesitate to contact my office with any questions or comments.

Sincerely,

Mark N. Templeton (*pro hac vice*)
6020 S. University Avenue
Chicago, IL 60637
Phone: (773) 702-9611
Email: templeton@uchicago.edu

xc: Parties to Case No. U-22070

STATE OF MICHIGAN
BEFORE THE MICHIGAN PUBLIC SERVICE COMMISSION

In the matter of the Application of
CONSUMERS ENERGY COMPANY for
authority to increase its rates for generation and
distribution of electricity and for other relief.

Case No. U-22070

ALJ Christopher S. Saunders

**URBAN CORE COLLECTIVE’S FIFTH DISCOVERY REQUEST
TO CONSUMERS ENERGY COMPANY**

Definitions

As used in these discovery requests, the words and phrases below have the following specific meanings, unless indicated otherwise in the specific question:

- A. “Consumers,” “Company,” “CE,” “you,” and “your” refer to Consumers Energy Company, its affiliated companies, predecessors-in-interest, officers, directors, partners, employees, and representatives.
- B. “MPSC” refers to the Michigan Public Service Commission.
- C. “UCC” refers to the Urban Core Collective.
- D. “Consumers’ Application” and “Application to the MPSC”, unless otherwise specified, refer to the application that Consumers submitted to the Michigan Public Service Commission (MPSC) on June 2, 2026 (Case No. U-22070) for authority to increase rates for the generation and distribution of electricity and for other relief, as well as the testimony and exhibits that Consumers filed with the MPSC on the same date in support thereof.
- E. “Representatives” includes directors, officers, employees, agents, consultants, witnesses, attorneys or other persons acting on behalf of the party to which these interrogatories and document requests are served.
- F. “Person” or “persons” includes natural persons as well as firms, partnerships, associations, institutions, joint ventures, corporations, governmental entities, administrative agencies, professional associations, and every other organization of whatever sort.
- G. “Describe” means to provide a complete description and explanation of the facts, circumstances, analysis, opinion and other information relating to (as that phrase is defined below) the subject matter of a specific discovery request.
- H. “Document” means any written or graphic material, however produced and reproduced of any written, recorded, electronic, printed, typed or handwritten matter of any kind or

nature, including but not limited to the following: all letters, memoranda, reports (preliminary and final), work papers, spreadsheets, studies, sample and/or testing protocols, diaries, logs, maps, pamphlets, notes, charts, graphs, calendars, schedules, tabulations, analyses, records, statistical information, accumulations, books, magazines, summaries, minutes, records of meetings and conversations of any kind, photographs, slides, film impressions, microfilm, microfiche, magnetic tapes, sound or mechanical reproductions, electronic files, computer disks or tapes, projections, instruments, drawings, including drafts, copies, copies with margin notes or reproductions, reports, summaries of investigations or negotiations, opinions or reports of consultations, press releases, e-mail, and other data compilations from which information can be obtained, translated (if necessary) by the respondent through detection devices into reasonably useable form.

I. Communication

- a. The term “communication” means any transmission of information by oral, graphic, written, pictorial, digital, or otherwise perceptible means, including, but not limited to, telephone conversations, e-mail, text messages, letters, telegrams, and personal conversations.
- b. A request seeking the identity of the source of a communication, addressing, relating or referring to, or discussing a specified matter encompasses documents having factual, contextual, or logical nexus to the matter, as well as communications in which explicit or implicit reference is made to the matter in the course of the communication.

J. “Relating to,” “relevant,” and “pertaining to” means and shall include containing, constituting, considering, comprising, concerning, discussing, regarding, describing, reflecting, studying, commenting or reporting on, mentioning, analyzing, or referring, alluding, or pertaining to, in whole or in part.

K. “Low-income customer” means a Consumers customer whose household income does not exceed 200% of the poverty level, as published in federal poverty guidelines from the United States Department of Health and Human Services.

L. “Of color,” as in the phrase “people of color,” “Black, Indigenous, and Persons of Color,” and “BIPOC,” as applied to persons, groups of persons, or Consumers customers, means having a race, or being comprised predominantly of persons having a race, that is not white, as defined under the 2010 United States census.

M. “Black, Indigenous, and Persons of Color” and “BIPOC” as applied to persons, groups of persons, or Consumers customers, means having a race, or being comprised predominantly of persons having a race, that is not white, as defined under the 2010 United States census.

N. “Testimony” of a witness, unless otherwise specified, means that witness's testimony in the present case, MPSC Case No. U-22070.

Instructions

- For the response to each question below, please:
- Identify the person responding and provide their title;
- Provide any and all Documents, including but not limited to Communications, that support the response;
- List any and all assumptions made by the person responding to the question;
- Identify specific time periods covered by the response if relevant to the question and answer, and if the reference to a particular year refers to a twelve-month period that does not start on January 1 and end on December 31 of that year, please provide the specific start and end dates;
- Provide the basis for any privilege claimed, including all details necessary to support that claim of privilege;
- Interpret “including” to mean “including without limitation” and interpret “and” and “or” inclusively rather than exclusively; and
- Provide any updates to the Company’s responses if there is a material change in the information included in the response.

Discovery Requests and Interrogatories

22070-UCC-CE-0890

1. Refer to Consumers’ responses to U22070-UCC-CE-0398, U22070-UCC-CE-0399, U22070-UCC-CE-0400, and U22070-UCC-CE-0401, which discuss “recent findings and additional knowledge about the scope and breadth of the SAP project” that caused the Company to decide not “to pursue recovery of [\$510,000 in capital to support the implementation of LMI project upgrades] in this proceeding.” Does the Company intend to amend its Application, direct testimonies, schedules, and other exhibits to reflect this decision not to pursue recovery of this capital? If so, please provide the date by which the Company will file an amended Application and other amended documents. If no, please state so and explain why not.

22070-UCC-CE-0891

2. Please refer to U22070-UCC-CE-0423_Gast_Att_1.zip, which provided some updated data sets in response to U22070-UCC-CE-0423 but which did not include an updated data set corresponding to question U22070-UCC-CE-0091 and response U-22070-UCC-CE-0091_Gast_Att_1.xlsx. By census tract, please provide an updated version of U22070-UCC-CE-0091_Gast_Att_1.xlsx, using the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100). Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact.

22070-UCC-CE-0892

3. By census tract, please provide the following data by month, starting in January 2019, through the most recent month available. If data is not available by month, provide data at the most available frequency (e.g., quarterly, annually, etc.). Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census

Tract 2231 in Harris County, TX is 48201223100). Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact.

- a. The total number of residential customers with arrears overall;
- b. The total number of low-income residential customers with arrears overall;
- c. The total number of low-income residential customers in arrears > 60 days;
- d. The total amount of arrears for all low-income customers;
- e. The total amount of arrears for all residential customers in arrears > 60 days; and
- f. The total amount of arrears for all low-income residential customers in arrears > 60 days.

22070-UCC-CE-0893

4. Please refer to U22070-UCC-CE-0423_Gast_Att_1.zip, which provided some updated data sets in response to U22070-UCC-CE-0423 but which did not include an updated data set corresponding to question U22070-UCC-CE-0093 and response U-22070-UCC-CE-0093_Gast_Att_1.xlsx. By census tract, please provide an updated version of U22070-UCC-CE-0093_Gast_Att_1.xlsx, using the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100). Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact.

22070-UCC-CE-0894

5. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, provided as answer to U22070-UCC-CE-0423. U22070-UCC-CE-108_Gast_Att_1 UPDATED.xlsx and U22070-UCC-108_Gast_Att_1.xlsx data sets did not contain responses to requests g, h, and i as requested in U22070-UCC-CE-0108. By census tract, please provide an updated data set containing the following data, by calendar year, from 2019 through 2025. Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact. Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100).
 - a. Number of residential customers on payment plans (corresponding to request (g) in U22070-UCC-CE-0108)
 - b. Number of residential customers receiving bill payment assistance (e.g., residential income assistance credit), with a breakdown by assistance source; (corresponding to request (h) in U22070-UCC-CE-0108) and
 - c. Average dollar amount of bill assistance per residential customer (corresponding to request (i) in U22070-UCC-CE-0108).

22070-UCC-CE-0895

6. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, provided as an answer to U22070-UCC-CE-0423, sheet "m-o." To confirm, does the response to sub-question "o" in column "e" correspond to *average* savings from EWR programs *per residential customer*? If no, or if the values represent *total* savings, please provide an updated response with the average savings from EWS programs per residential customers, by month starting in January 2019, through the most recent month available, in unlocked, native Excel (.xlsx) or .csv format with formulas intact, and by census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract

2231 in Harris County, TX is 48201223100). If you are unable to provide the requested information, please explain why not.

22070-UCC-CE-0896

7. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, provided in response to U22070-UCC-CE-0423, sheet “l”, which provides EWR outreach dollars spent by calendar year. Please provide EWR outreach dollars spent by month, starting in January 2019, through the most recent month available. Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100). Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact. If you are unable to respond with the requested information, please explain why not.

22070-UCC-CE-0897

8. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, provided as response to U22070-UCC-CE-0423. In sheets “j” and “k,” Does “count_ca” in sheet “j” represent the number of customer accounts to which late fees were applied? Does “count_ca_li” in sheet “k” represent the number of low-income customer account to which the late fees were applied? If yes, please state so. If no, please provide the following data by calendar year, from 2019 through 2025. Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact. Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100).
 - a. Number of total residential customers subjected to late fees; and
 - b. Number of total low-income residential customers subject to late fees.

22070-UCC-CE-0898

9. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, sheets “j” and “k”, provided as answers to U22070-UCC-CE-0423. Please also refer to census tracts 26077000900 (2019), 26145010200 (2021), 26145000200 (2023), 26145001100 (2023), and 26145000200 (2026). For each of these census tracts and years, sheet “k” reports more cumulative late fees for low-income customers only than all customers, as reported in sheet “j.” Please confirm that the responses provided are correct. If correct, please explain why there are more cumulative late fees for the low-income portion of the Company’s customers than for all customers? If the responses are not correct, please provide updated values and confirm that the rest of the reported information in sheets “j” and “k” are correct.

22070-UCC-CE-0899

10. Please refer to U22070-UCC-CE-0109_Gast_Att_1.xlsx and U22070-UCC-CE-0110_Gast_Att_1 UPDATED.xlsx, which report (a) “[a]dditional deposits paid to restore service (total paid to all customers in each zip code and census tract, by year)” and (b) “[r]econnection fees paid to restore service (total paid to all customers in each zip code and census tract, by year)” by zip code and census tract, respectively. In each year, the total summed value for all additional deposits by zip code is very different from the total summed value for all additional deposits by census tract. The same is true when comparing total summed reconnection fees by zip code versus census tract. Please provide, by year, from 2019 to 2025 inclusive:

- a. Total summed value of additional deposits paid to restore service for (i) all zip codes and (ii) all census tracts. If (i) and (ii) are different, please explain why. If there were errors in the data sets provided in U22070-UCC-CE-0109_Gast_Att_1.xlsx and U22070-UCC-CE-0110_Gast_Att_1 UPDATED.xlsx, please provide updated data sets without errors.
- b. Total summed value of reconnection fees paid to restore service for (i) all zip codes and (ii) all census tracts. If (i) and (ii) are different, please explain why. If there were errors in the data sets provided in U22070-UCC-CE-0109_Gast_Att_1.xlsx and U22070-UCC-CE-0110_Gast_Att_1 UPDATED.xlsx, please provide updated data sets without errors.

22070-UCC-CE-0900

11. By zip code, please provide the following by year starting in 2019, through 2025 inclusive, in unlocked, native Excel (.xlsx) or .csv format with formulas intact.

- a. Number of residential customers that paid reconnection fees;
- b. Number of residential customers that paid additional deposits;
- c. Number of low income residential customers that paid reconnection fees; and
- d. Number of low income residential customers that paid additional deposits.

22070-UCC-CE-0901

12. By census tract, please provide the following by year starting in 2019, through 2025 inclusive, in unlocked, native Excel (.xlsx) or .csv format with formulas intact, and by census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100).

- a. Number of residential customers that paid reconnection fees;
- b. Number of residential customers that paid additional deposits;
- c. Number of low income residential customers that paid reconnection fees;
- d. Number of low income residential customers that paid additional deposits;
- e. Number of residential customers that were shutoff;
- f. Number of low income residential customers that were shutoff; and
- g. Number of residential customers experiencing shutoffs who in that year experienced:
 - No shutoffs
 - 1 shutoff
 - 2 shutoffs
 - 3 shutoffs
 - 4-6 shutoffs
 - More than 6 shutoffs

22070-UCC-CE-0902

13. Please reference U22070-UCC-CE-0107 and U22070-UCC-CE-0094. When the column “total_res_ca_count” in U22070-UCC-CE-0107, sheet “a-f” is summed up across zip codes by year, the total customer count appears to be approximately 1.9 million, depending on the year. In U22070-UCC-CE-0094, when the column “total_res_customers_5e” in sheet “e” is summed by year, the total number of customers appears to be closer to approximately 1.6 million, depending on the month/year. There also appears to be a discrepancy in the zip codes reported (in U22070-UCC-CE-0107, approximately 534, when counting column “c” of sheet “a-f”, depending on the year and

in U22070-UCC-CE-0094, approximately 512, when counting column “b” of sheet “e”, depending on the month/year). Please explain why the total customer count and zip codes may differ and please provide Consumers’ total number of customers by year, from 2019 to 2025, inclusive. If any previous discovery responses include errors, please provide updated and accurate data sets.

22070-UCC-CE-0903

14. Please reference U22070-SA-CE-184_David_ATT_1, which provides Rate and Class designations, and column A of U22070-UCC-CE-0429_Att1. Please explain if the “ELE_SES” designation used in U22070-UCC-CE-0429_Att1 is the same as the “RS” designation used in U22070-SA-CE-184_David_ATT_1. Whether yes or no, please provide an explanation of how Rate and Class designations in U22070-SA-CE-184_David_ATT_1 overlap with or are mapped to the designations used in column A of U22070-UCC-CE-0429_Att1.

22070-UCC-CE-0904

15. Please reference column A of U22070-UCC-CE-0429_Att1. Does “ELE_SES” represent the total residential customer count?

22070-UCC-CE-0905

16. Please refer to pages 45 to 46 of Exhibit A-95 (EMD-11), where the Company compares the SAIDI scores of each of the 225 EJ-serving circuits against the Institute of Electrical and Electronics Engineers (“IEEE”) quartiles. Please provide the underlying data and calculations for this analysis, in native Excel format (.xlsx), including which of the EJ-serving circuits fall into which IEEE quartile (both excluding and including MEDs).

22070-UCC-CE-0906

17. Please refer to pages 47 to 48 of Exhibit A-95 (EMD-11), where the Company presents a comparison of each of the 56 EJ census tracts to the five most similar non-EJ urban census tracts, matched by population size and housing density, across 12 reliability metrics and five years of data. Please provide the underlying data and calculations for this analysis, including which census tracts were compared to which census tracts and the reliability metrics for each census tract, in native Excel format (.xlsx). Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g. Census Tract 2231 in Harris County, TX is 48201223100).

22070-UCC-CE-0907

18. Please refer to pages 47 to 48 of Exhibit A-95 (EMD-11), where the Company presents a comparison of each of the 56 EJ census tracts to the five most similar non-EJ urban census tracts, matched by population size and housing density, across 12 reliability metrics and five years of data. Does the Company intend to conduct this analysis anew with updated data as part of future rate cases, or has the Company determined that it does not need to conduct this analysis again?

22070-UCC-CE-0908

19. Please refer to page 65 of the Direct Testimony of Emily M. Duke, where Witness Duke states that the VCRP investments “applied to the test year in that case, which only began on May 1, 2026” and that “it is still too early to assess, in the past tense, how those initial investments were used to improve reliability.” Please provide, for each of the 11 bridge period VCRP projects listed on page 27 of Exhibit A-167 (JMP-1): the project start date, current status (not started, in progress, or completed), the actual dollars spent to date, and

the expected completion date. If a project is in progress, please provide an estimate of the amount of progress completed, such as the percentage of project completion or the amount of dollars spent on the project relative to the project's budget.

22070-UCC-CE-0909

20. Please refer to page 27 in Exhibit A-167 (JMP-1). Please state which, if any, bridge period VCRP projects have been completed. For any bridge period VCRP project that has been completed, please provide the SAIDI (including MEDs) data for the targeted circuit for each month of the most recent 12-month period following project completion, as well as the SAIDI (including MEDs) data for each month of the 12-month period immediately preceding project commencement. If 12 months of data is not available after project completion, provide data for each month following project completion to the present month.

22070-UCC-CE-0910

21. Please refer to page 27 in Exhibit A-167 (JMP-1). For each of the 11 VCRP projects with more than \$30 million in projected spending for that project, please explain if each project investment is considered fractionalization, LVD line rebuilds, or other miscellaneous work, and if other miscellaneous work, please provide more information about the nature of the work.

22070-UCC-CE-0911

22. Please refer to page 27 in Exhibit A-167 (JMP-1). For any bridge period VCRP project that has not yet commenced construction, please explain why not, provide the anticipated start date, and if the project has been delayed, please provide reasons for the delay.

22070-UCC-CE-0912

23. Please refer to page 65, lines 6 to 10 of the Direct Testimony of Emily M. Duke, where Witness Duke states that the Company "can demonstrate that the VCRP investment from both Case No. U-21870 and the instant case are 'additional' to investments proposed in the 2023 Reliability Roadmap" because all VCRP investments use a new "mainline" design concept. Please identify any EJ-serving circuits that are served by VCRP projects that will also receive investment through the LVD Lines Reliability subprogram, the Repetitive Outages subprogram, or any other capital program during the same period. For each such circuit, please describe the non-VCRP investment and explain how the Company distinguishes the reliability improvements attributable to VCRP from those attributable to other programs.

22070-UCC-CE-0913

24. Please refer to pages 65, lines 11 to 14 of the Direct Testimony of Emily M. Duke. Witness Duke states that the "mainline" concept "had not been developed when the 2023 Reliability Roadmap was published" and is currently "being solely deployed for VCRP work," but also states that the Company "may implement it on other parts of the LVD system in the future." Please provide any Company documentation (including but not limited to internal memos, engineering studies, or presentations) showing that the mainline concept was developed. Please also explain how the Company plans to maintain the distinction between VCRP investments and other LVD investments going forward. If the Company anticipates deploying mainline construction outside of the VCRP, please explain how it will demonstrate additionality for VCRP spending at that point.

22070-UCC-CE-0914

25. Please refer to page 48 of Exhibit A-95 (EMD-11), where the Company describes total VCRP investments of approximately \$600 million over 10 years, including \$200 million for fractionalization, \$350 million for LVD line rebuilds, and \$50 million for other work. Please provide a detailed year-by-year breakdown of planned VCRP spending by investment category (fractionalization, LVD line rebuilds, and other work) for each year from 2026 through 2035, identifying which specific EJ-serving circuits are targeted in each year.

22070-UCC-CE-0915

26. Please refer to pages 63 to 64 of the Direct Testimony of Emily M. Duke in which she describes the VCRP. Please explain how the Company prioritizes which EJ-serving circuits receive VCRP investment in a given year. Please identify the criteria used to rank or sequence circuits, including but not limited to whether circuits with the worst SAIDI (including MEDs) performance are prioritized first.

22070-UCC-CE-0916

27. Please refer to page 63 of the Direct Testimony of Emily M. Duke in which she describes the VCRP's stated goal of "ensuring that every EJ circuit in the Company's service territory has SAIDI, including MEDs, that is in the second IEEE quartile or better." Is the Company's goal that every one of the 225 EJ-serving circuits will have SAIDI, including MEDs, that is in the second IEEE quartile or better at the end of the 10-year period of VCRP investments? How is the Company planning to ensure no EJ-serving circuits are in the third or fourth IEEE quartile after the VCRP investments have been made?

22070-UCC-CE-0917

28. Please refer to page 14 of Exhibit A-168 (JMP-2) where the Company lists 15 VCRP projects totaling \$40,000,000 in proposed test year spending. Please explain the criteria used to select each of these 15 test year projects. Do these EJ-serving circuits have the worst SAIDI (including MEDs) among the remaining EJ-serving circuits not already addressed by the bridge period VCRP projects? If not, please state which EJ-serving circuits with worse SAIDI (including MEDs) were not chosen for test year investment and explain why.

UNIVERSITY OF CHICAGO LAW SCHOOL
ABRAMS ENVIRONMENTAL LAW CLINIC
Counsel for Urban Core Collective

Date: September 4, 2026

By: /s/ Mark N. Templeton
Mark N. Templeton (*pro hac vice*)
University of Chicago Law School
Abrams Environmental Law Clinic
6020 S. University Avenue
Chicago, IL 60637
Phone: (773) 702-9611
templeton@uchicago.edu

Question:

1. Refer to Consumers' responses to U22070-UCC-CE-0398, U22070-UCC-CE-0399, U22070-UCC-CE-0400, and U22070-UCC-CE-0401, which discuss "recent findings and additional knowledge about the scope and breadth of the SAP project" that caused the Company to decide not "to pursue recovery of [\$510,000 in capital to support the implementation of LMI project upgrades] in this proceeding." Does the Company intend to amend its Application, direct testimonies, schedules, and other exhibits to reflect this decision not to pursue recovery of this capital? If so, please provide the date by which the Company will file an amended Application and other amended documents. If no, please state so and explain why not.

Response:

No. The Company does not intend to amend its application, direct testimonies, schedules, and other exhibits to reflect this decision not to pursue recovery of this capital. The Company does and will concede the request for the project and the associated amounts, the Company's rebuttal filings will reflect the concession.

Witness: Alex M Gast

Date: September 17, 2026

Question:

2. Please refer to U22070-UCC-CE-0423_Gast_Att_1.zip, which provided some updated data sets in response to U22070-UCC-CE-0423 but which did not include an updated data set corresponding to question U22070-UCC-CE-0091 and response U-22070-UCC-CE-0091_Gast_Att_1.xlsx. By census tract, please provide an updated version of U22070-UCC-CE-0091_Gast_Att_1.xlsx, using the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100). Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact.

Response:

See U22070-UCC-CE-0891_Gast_Att_1

Witness: Alex M Gast

Date: September 17, 2026

Question:

4. Please refer to U22070-UCC-CE-0423_Gast_Att_1.zip, which provided some updated data sets in response to U22070-UCC-CE-0423 but which did not include an updated data set corresponding to question U22070-UCC-CE-0093 and response U-22070-UCC-CE-0093_Gast_Att_1.xlsx. By census tract, please provide an updated version of U22070-UCC-CE-0093_Gast_Att_1.xlsx, using the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100). Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact.

Response:

See U22070-UCC-CE-0893_Gast_Att_1

Witness: Alex M Gast

Date: September 17, 2026

Question:

5. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, provided as answer to U22070-UCC-CE-0423. U22070-UCC-CE-108_Gast_Att_1 UPDATED.xlsx and U22070-UCC-108_Gast_Att_1.xlsx data sets did not contain responses to requests g, h, and i as requested in U22070-UCC-CE-0108. By census tract, please provide an updated data set containing the following data, by calendar year, from 2019 through 2025. Provide all responses in unlocked, native Excel (.xlsx) or .csv format with formulas intact. Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100).

a. Number of residential customers on payment plans (corresponding to request (g) in U22070-UCC-CE-0108)

b. Number of residential customers receiving bill payment assistance (e.g., residential income assistance credit), with a breakdown by assistance source; (corresponding to request (h) in U22070-UCC-CE-0108) and

c. Average dollar amount of bill assistance per residential customer (corresponding to request (i) in U22070-UCC-CE-0108).

Response:

See U22070-UCC-CE-0894_Gast_Att_1

Witness: Alex M Gast

Date: September 18, 2026

Question:

6. Please refer to U22070-UCC-CE-0108_Gast_Att_1 UPDATED.xlsx, provided as an answer to U22070-UCC-CE-0423, sheet "m-o." To confirm, does the response to sub question "o" in column "e" correspond to average savings from EWR programs per residential customer? If no, or if the values represent total savings, please provide an updated response with the average savings from EWS programs per residential customers, by month starting in January 2019, through the most recent month available, in unlocked, native Excel (.xlsx) or .csv format with formulas intact, and by census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g., Census Tract 2231 in Harris County, TX is 48201223100). If you are unable to provide the requested information, please explain why not.

Response:

See U22070-UCC-CE-0895_Gast_Att_1

Witness: Alex M Gast

Date: September 17, 2026

Question:

14. Please reference U22070-SA-CE-184_David_ATT_1, which provides Rate and Class designations, and column A of U22070-UCC-CE-0429_Att1. Please explain if the "ELE_SES" designation used in U22070-UCC-CE-0429_Att1 is the same as the "RS" designation used in U22070-SA-CE-184_David_ATT_1. Whether yes or no, please provide an explanation of how Rate and Class designations in U22070-SA-CE-184_David_ATT_1 overlap with or are mapped to the designations used in column A of U22070-UCC-CE-0429_Att1.

Response:

Yes, assuming the question's reference to "ELE_SES" is intended to refer to "ELE_RES," as shown in U22070-UCC-CE-0429_Att1. ELE_RES represents the total residential customer class. Similarly, the "RS" designation in U22070-SA-CE-184_David_ATT_1 refers to the total residential customer class.

The designations therefore align at the residential customer class level. However, within the Company's rate category hierarchy, RATE_RS is one of nine rate categories that make up the total residential customer class, as shown in U22070-UCC-CE-0429_Att1. Accordingly, "RS" in the COSS file is not equivalent to the separate RATE_RS rate category.

Witness: Eugène M Breuring

Date: September 15, 2026

Question:

15. Please reference column A of U22070-UCC-CE-0429_Att1. Does "ELE_SES" represent the total residential customer count?

Response:

Yes. However, the reference to "ELE_SES" in the question appears to be a labeling error. The total shown in U22070-UCC-CE-0429_Att1 represents the total residential customer count and is labeled "ELE_RES." This is consistent with the Company's response to U22070-UCC-CE-0429 and U22070-UCC-CE-0903, where the same clarification was provided.

Witness: Eugène M Breuring

Date: September 15, 2026

Question:

16. Please refer to pages 45 to 46 of Exhibit A-95 (EMD-11), where the Company compares the SAIDI scores of each of the 225 EJ-serving circuits against the Institute of Electrical and Electronics Engineers ("IEEE") quartiles. Please provide the underlying data and calculations for this analysis, in native Excel format (.xlsx), including which of the EJ serving circuits fall into which IEEE quartile (both excluding and including MEDs).

Response:

The analysis discussed on pages 45 and 46 of Exhibit A-95 (EMD-11), as reflected in Figures 32 and 33 on page 46, was conducted in the summer of 2024 based on actual data from 2019-2023. The Company has not reperformed this analysis since then. The underlying data for Figures 32 and 33 is provided in Attachment 1 to this response, including categorization of circuits by quartile. Note the customer counts in Figure 32 should be as shown in Attachment 1.

Subsequent data on the SAIDI performance of circuits is available in workpaper WP-EMD-7, which contains the data underlying the Company's regression analysis.

Witness: Emily M Duke

Date: September 15, 2026

Question:

17. Please refer to pages 47 to 48 of Exhibit A-95 (EMD-11), where the Company presents a comparison of each of the 56 EJ census tracts to the five most similar non-EJ urban census tracts, matched by population size and housing density, across 12 reliability metrics and five years of data. Please provide the underlying data and calculations for this analysis, including which census tracts were compared to which census tracts and the reliability metrics for each census tract, in native Excel format (.xlsx). Please provide the census tract identifier in the 11-digit US Census FIPS Code form. This should include the 2-digit state FIPS code + 3-digit county FIPS code + 6-digit county FIPS code (e.g. Census Tract 2231 in Harris County, TX is 48201223100).

Response:

The analysis discussed on pages 47 and 48 of Exhibit A-95 (EMD-11), as reflected Figure 34 on page 48, was conducted in the summer of 2024 based on actual data from 2019-2023. The Company has not reperformed this analysis since then. The underlying data for Figure 34 is provided in Attachment 1 to this response.

Note that subsequent data on the SAIDI performance of census tracts is available in workpaper WP-EMD-7, which contains the data underlying the Company's regression analysis.

Witness: Emily M Duke

Date: September 15, 2026

Question:

18. Please refer to pages 47 to 48 of Exhibit A-95 (EMD-11), where the Company presents a comparison of each of the 56 EJ census tracts to the five most similar non-EJ urban census tracts, matched by population size and housing density, across 12 reliability metrics and five years of data. Does the Company intend to conduct this analysis anew with updated data as part of future rate cases, or has the Company determined that it does not need to conduct this analysis again?

Response:

The Company does not currently plan to conduct this analysis anew with each future rate case. The referenced analysis was conducted by the Company in the summer of 2024. At that time, the Company concluded that the analysis indicated that there were certain EJ communities that did face poor reliability warranting a Company response, and the Company proposed the Vulnerable Communities Resiliency Plan (VCRP) in response to that (see the rebuttal testimony of Company witness Michael P. Kelly in Case No. U-21585; note that at that time the Company used the term “EJ Resiliency Plan” to refer to the VCRP). The analysis on pages 47 and 48 of Exhibit A-95 (EMD-11) was intended, in part, as an interim analysis of EJ reliability while the Company was developing its Commission-ordered regression analysis. Because the 2024 analysis a) led the Company to develop the VCRP to address the underlying issue and b) the regression analyses have since provided a more sophisticated means of studying reliability in EJ communities, the Company does not believe the analysis from 2024 needs to be repeated on an ongoing basis.

Witness: Emily M Duke

Date: September 17, 2026

Question:

19. Please refer to page 65 of the Direct Testimony of Emily M. Duke, where Witness Duke states that the VCRP investments “applied to the test year in that case, which only began on May 1, 2026” and that “it is still too early to assess, in the past tense, how those initial investments were used to improve reliability.” Please provide, for each of the 11 bridge period VCRP projects listed on page 27 of Exhibit A-167 (JMP-1): the project start date, current status (not started, in progress, or completed), the actual dollars spent to date, and the expected completion date. If a project is in progress, please provide an estimate of the amount of progress completed, such as the percentage of project completion or the amount of dollars spent on the project relative to the project’s budget.

Response:

Please refer to Attachment 1 to this discovery response. Note that the Company’s current internal naming (“Current Naming Convention for Automation Consistency”) differs from the nomenclature used in Exhibit A-167 (JMP-1) (“Project Description, Line, Substation, or Location”), but the projects themselves are the same.

Witness: Jenny M PARTLAN

Date: September 17, 2026

Question:

20. Please refer to page 27 in Exhibit A-167 (JMP-1). Please state which, if any, bridge period VCRP projects have been completed. For any bridge period VCRP project that has been completed, please provide the SAIDI (including MEDs) data for the targeted circuit for each month of the most recent 12-month period following project completion, as well as the SAIDI (including MEDs) data for each month of the 12-month period immediately preceding project commencement. If 12 months of data is not available after project completion, provide data for each month following project completion to the present month.

Response:

As of the date of this response, none of the bridge-period VCRP projects identified on page 27 of Exhibit A-167 (JMP-1) have been completed. Therefore, the requested post-completion SAIDI data is not available.

Witness: Jenny M PARTLAN

Date: September 17, 2026

Question:

21. Please refer to page 27 in Exhibit A-167 (JMP-1). For each of the 11 VCRP projects with more than \$30 million in projected spending for that project, please explain if each project investment is considered fractionalization, LVD line rebuilds, or other miscellaneous work, and if other miscellaneous work, please provide more information about the nature of the work.

Response:

None of the 11 VCRP projects listed on page 27, lines 1 through 11, of Exhibit A-167 (JMP-1) have projected spending greater than \$30 million. All 11 projects are primarily LVD line rebuild projects intended to bring facilities to mainline standards, including hardened pole and conductor construction and automation loops that provide circuit redundancy and reliability benefits (please also see page 65, lines 15 through 22, of Company witness Duke's testimony).

Witness: Jenny M PARTLAN

Date: September 17, 2026

Question:

22. Please refer to page 27 in Exhibit A-167 (JMP-1). For any bridge period VCRP project that has not yet commenced construction, please explain why not, provide the anticipated start date, and if the project has been delayed, please provide reasons for the delay.

Response:

As of the date of this response, no bridge-period VCRP project has commenced construction. Construction has not begun due to long lead permitting, easement acquisition, and other preconstruction activities still underway. Three projects have completed design and preconstruction and are scheduled to begin construction in late September 2026. Three projects have completed design and are progressing through preconstruction activities. The remaining five projects are in various stages of design development and preconstruction planning. Please refer to discovery response 22070-UCC-CE-0908 for further details.

Witness: Jenny M PARTLAN

Date: September 17, 2026

Question:

23. Please refer to page 65, lines 6 to 10 of the Direct Testimony of Emily M. Duke, where Witness Duke states that the Company “can demonstrate that the VCRP investment from both Case No. U-21870 and the instant case are ‘additional’ to investments proposed in the 2023 Reliability Roadmap” because all VCRP investments use a new “mainline” design concept. Please identify any EJ-serving circuits that are served by VCRP projects that will also receive investment through the LVD Lines Reliability subprogram, the Repetitive Outages subprogram, or any other capital program during the same period. For each such circuit, please describe the non-VCRP investment and explain how the Company distinguishes the reliability improvements attributable to VCRP from those attributable to other programs.

Response:

Please refer to Attachment 1 to this discovery response. For each VCRP project for the bridge period and test year, the attachment shows other projects listed in Exhibit A-167 (JMP-1) and Exhibit A-168 (JMP-2) that affect the same circuit(s). Each VCRP project, by design, affects two circuits since it creates a loop between them, which means that some “other projects” show up on the list more than once, because they are on circuits that more than one VCRP project impacts.

Each project has its own modeled CMI improvement or other benefit, as specified in Exhibit A-167 (JMP-1) and Exhibit A-168 (JMP-2). The Company would not necessarily be able to conclusively differentiate which projects contributed which amounts to future reliability improvements.

Witness: Emily M Duke

Date: September 17, 2026

Question:

25. Please refer to page 48 of Exhibit A-95 (EMD-11), where the Company describes total VCRP investments of approximately \$600 million over 10 years, including \$200 million for fractionalization, \$350 million for LVD line rebuilds, and \$50 million for other work. Please provide a detailed year-by-year breakdown of planned VCRP spending by investment category (fractionalization, LVD line rebuilds, and other work) for each year from 2026 through 2035, identifying which specific EJ-serving circuits are targeted in each year.

Response:

As stated on page 66, lines 6 through 9, of my direct testimony, the \$600 million total (and the categorical breakdowns referenced in this interrogatory) were initial estimates developed in 2024 in support of Case No. U-21585. An estimated year-by-year breakdown of that total spending is shown in Figure 23 in my direct testimony. As stated in my testimony, the Company expects that exact amounts will vary as projects are identified and designed. The Company has not yet chosen specific projects or breakdowns among categories of investments beyond the test year in the instant case; all projects in the test year are line rebuilds to mainline standards.

Witness: Emily M Duke

Date: September 17, 2026

Question:

26. Please refer to pages 63 to 64 of the Direct Testimony of Emily M. Duke in which she describes the VCRP. Please explain how the Company prioritizes which EJ-serving circuits receive VCRP investment in a given year. Please identify the criteria used to rank or sequence circuits, including but not limited to whether circuits with the worst SAIDI (including MEDs) performance are prioritized first.

Response:

The Company prioritizes VCRP investments based on reliability performance, primarily as measured by SAIDI including Major Event Days (MEDs). The Company evaluates EJ-serving circuits and ranks them based on their reliability performance, with priority given to the worst-performing circuits. In the bridge period in the instant case, all VCRP projects target circuits that were in the fourth quartile for SAIDI including MEDs, with the exception of the Mona Lake project, which was in the third quartile. Please refer to discovery response 22070-UCC-CE-0917 for a discussion of test year projects.

Please note that the Company cannot simply go down the list of the worst-performing circuits in order, due to the need to balance work across the service territory, a desire to make investments in as many EJ communities as possible in a given year, and constraints in some areas (such as in securing permits, easements, etc.) that prevent work from beginning immediately.

Witness: Jenny M PARTLAN

Date: September 17, 2026

Question:

27. Please refer to page 63 of the Direct Testimony of Emily M. Duke in which she describes the VCRP's stated goal of "ensuring that every EJ circuit in the Company's service territory has SAIDI, including MEDs, that is in the second IEEE quartile or better." Is the Company's goal that every one of the 225 EJ-serving circuits will have SAIDI, including MEDs, that is in the second IEEE quartile or better at the end of the 10-year period of VCRP investments? How is the Company planning to ensure no EJ-serving circuits are in the third or fourth IEEE quartile after the VCRP investments have been made?

Response:

That is an accurate representation of the Company's goal with the VCRP. Once all needed investments are made, the Company intends that outages will be sufficiently reduced in size and duration that all-weather SAIDI will be better than the IEEE average on each circuit.

Witness: Emily M Duke

Date: September 17, 2026

Question:

28. Please refer to page 14 of Exhibit A-168 (JMP-2) where the Company lists 15 VCRP projects totaling \$40,000,000 in proposed test year spending. Please explain the criteria used to select each of these 15 test year projects. Do these EJ-serving circuits have the worst SAIDI (including MEDs) among the remaining EJ-serving circuits not already addressed by the bridge period VCRP projects? If not, please state which EJ-serving circuits with worse SAIDI (including MEDs) were not chosen for test year investment and explain why.

Response:

Please refer to discovery response 22070-UCC-CE-0915. For the test year projects, all affected projects affect circuits that were in the third or fourth quartile, with the exception of the Calkins project, which was in the second quartile.

The Company's data on quartiles of EJ circuits was provided in discovery response 22070-UCC-CE-0905.

Witness: Jenny M PARTLAN

Date: September 17, 2026